

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 973

Introduced by Raybould, 28.

Read first time January 12, 2026

Committee:

1 A BILL FOR AN ACT relating to state government; to amend section
2 81-1108.17, Reissue Revised Statutes of Nebraska, and section
3 81-1108.15, Revised Statutes Supplement, 2025; to provide for free
4 parking for state employees; to change provisions regarding charges
5 for state buildings and facilities; and to repeal the original
6 sections.

7 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 81-1108.15, Revised Statutes Supplement, 2025, is
2 amended to read:

3 81-1108.15 (1) Except as provided in the Nebraska State Capitol
4 Preservation and Restoration Act, the division shall have the primary
5 functions and responsibilities of statewide facilities planning,
6 facilities construction, and facilities administration and shall adopt
7 and promulgate rules and regulations to carry out this section.

8 (2) Facilities planning shall include the following responsibilities
9 and duties:

10 (a) To maintain utilization records of all state-owned, state-
11 occupied, and vacant facilities;

12 (b) To coordinate comprehensive capital facilities planning;

13 (c) To define and review program statements based on space
14 utilization standards;

15 (d) To prepare or review planning and construction documents;

16 (e) To develop and maintain time-cost schedules for capital
17 construction projects;

18 (f) To assist the Governor and the Legislative Fiscal Analyst in the
19 preparation of the capital construction budget recommendations;

20 (g) To maintain a complete inventory of all state-owned, state-
21 occupied, and vacant sites and structures and to review the proposals for
22 naming such sites and structures;

23 (h) To determine space needs of all state agencies and establish
24 space-allocation standards;

25 (i) To cause a state comprehensive capital facilities plan to be
26 developed; and

27 (j) To carry out the State Building Construction Alternatives Act.

28 (3) Facilities construction shall include the following powers and
29 duties:

30 (a) To maintain close contact with and conduct inspections of each
31 project so as to assure execution of time-cost schedules and efficient

1 contract performance if such project's total design and construction cost
2 is equal to or greater than the project cost set by subdivision (1)(a) of
3 section 81-1108.43 as adjusted by subsection (2) of section 81-1108.43;

4 (b) To perform final acceptance inspections and evaluations; and

5 (c) To coordinate all change or modification orders and progress
6 payment orders.

7 (4) Facilities administration shall include the following powers and
8 duties:

9 (a) To serve as state leasing administrator or agent for all
10 facilities to be leased for use by the state and for all state-owned
11 facilities to be rented to state agencies or other parties subject to
12 section 81-1108.22. The division shall remit the proceeds from any
13 rentals of state-owned facilities to the State Treasurer for credit to
14 the State Building Revolving Fund and the State Building Renewal
15 Assessment Fund;

16 (b) To provide all maintenance, repairs, custodial duties, security,
17 and administration for all buildings and grounds owned or leased by the
18 State of Nebraska except as provided in subsections (5) and (6) of this
19 section;

20 (c) To be responsible for adequate parking and the designation of
21 parking stalls or spaces, including access aisles, in offstreet parking
22 facilities for the exclusive use of handicapped or disabled or
23 temporarily handicapped or disabled persons pursuant to section 18-1737;

24 (d) Beginning July 1, 2028, to be responsible for adequate offstreet
25 parking for all state employees at all sites and facilities owned or
26 leased by the State of Nebraska without cost to such employees;

27 (e) {d} To ensure that all state-owned, state-occupied, and vacant
28 facilities are maintained or utilized to their maximum capacity or to
29 dispose of such facilities through lease, sale, or demolition;

30 (f) {e} To submit electronically a report regarding the amount of
31 property leased by the state and the availability of state-owned property

1 for the needs of state agencies, upon request by the Appropriations
2 Committee of the Legislature, the Committee on Building Maintenance, or a
3 member of the Legislature;

4 (g) ~~(f)~~ To administer the State Emergency Capital Construction
5 Contingency Fund;

6 (h) ~~(g)~~ To submit status reports to the Governor and the Legislative
7 Fiscal Analyst after each quarter of a construction project is completed
8 detailing change orders and expenditures to date. The report submitted to
9 the Legislative Fiscal Analyst shall be submitted electronically. Such
10 reports shall be required on all projects costing an amount equal to or
11 greater than the amount set forth in subdivision (1)(a) of section
12 81-1108.43 as adjusted by subsection (2) of section 81-1108.43 and on
13 such other projects as may be designated by the division; and

14 (i) ~~(h)~~ To submit a final report on each project to the Governor and
15 the Legislative Fiscal Analyst. The report submitted to the Legislative
16 Fiscal Analyst shall be submitted electronically. Such report shall
17 include, but not be limited to, a comparison of final costs and
18 appropriations made for the project, change orders, and modifications and
19 whether the construction complied with the related approved program
20 statement. Such reports shall be required on all projects costing an
21 amount equal to or greater than the amount set forth in subdivision (1)
22 (a) of section 81-1108.43 as adjusted by subsection (2) of section
23 81-1108.43 and on such other projects as may be designated by the
24 division.

25 (5) Subdivisions (4)(b), (c), and (e) ~~(d)~~ of this section shall not
26 apply to (a) state-owned facilities to be rented to state agencies or
27 other parties by the University of Nebraska, the Nebraska state colleges,
28 the Department of Transportation, and the Board of Educational Lands and
29 Funds, (b) buildings and grounds owned or leased for use by the
30 University of Nebraska, the Nebraska state colleges, and the Board of
31 Educational Lands and Funds, (c) buildings and grounds owned, leased, or

1 operated by the Department of Correctional Services, (d) facilities to be
2 leased for nonoffice use by the Department of Transportation, (e)
3 buildings or grounds owned or leased by the Game and Parks Commission if
4 the application of such subdivisions to the buildings or grounds would
5 result in ineligibility for or repayment of federal funding, (f)
6 buildings or grounds of the state park system, state recreation areas,
7 state historical parks, state wildlife management areas, or state
8 recreational trails, or (g) other buildings or grounds owned or leased by
9 the State of Nebraska which are specifically exempted by the division
10 because the application of such subdivisions would result in the
11 ineligibility for federal funding or would result in hardship on an
12 agency, board, or commission due to other exceptional or unusual
13 circumstances, except that nothing in this subdivision shall prohibit the
14 assessment of building rental depreciation charges to tenants of
15 facilities owned by the state and under the direct control and
16 maintenance of the division.

17 (6) Security for all buildings and grounds owned or leased by the
18 State of Nebraska in Lincoln, Nebraska, except the buildings and grounds
19 described in subsection (5) of this section, shall be the responsibility
20 of the Nebraska State Patrol. The Nebraska State Patrol shall consult
21 with the Governor, the Chief Justice, the Executive Board of the
22 Legislative Council, and the State Capitol Administrator regarding
23 security policy within the State Capitol and capitol grounds.

24 (7) Each member of the Legislature shall receive an electronic copy
25 of the reports required by subdivisions (4)(h) and (i) ~~{4}(g) and (h)}~~ of
26 this section by making a request for them to the State Building
27 Administrator. The information on such reports shall be submitted to the
28 division by the agency responsible for the project.

29 **Sec. 2.** Section 81-1108.17, Reissue Revised Statutes of Nebraska, is
30 amended to read:

31 81-1108.17 (1) The Department of Administrative Services shall be

1 the custodian of the state laboratory and laboratory grounds, the
2 Governor's Mansion and grounds, and all other buildings and lands owned
3 or leased by the State of Nebraska except as exempted under subsections
4 (5) and (6) of section 81-1108.15 or as provided in the Nebraska State
5 Capitol Preservation and Restoration Act.

6 (2) To aid in the performance of his or her duties, the Director of
7 Administrative Services shall appoint an administrator. The
8 administrator, under the direction of the director, shall have complete
9 control and all powers necessary to properly maintain the state
10 laboratory and laboratory grounds, the Governor's Mansion and grounds,
11 and all other buildings and lands owned or leased by the State of
12 Nebraska except as exempted under subsections (5) and (6) of section
13 81-1108.15 or as provided in the Nebraska State Capitol Preservation and
14 Restoration Act.

15 (3) Except as provided in the act, the administrator, under the
16 direction of the director, is authorized to (a) lease space or provide
17 facilities for the parking of state officers' and employees' vehicles as
18 well as bureau fleet vehicles as defined in section 81-1011, (b) lease,
19 rent, or permit for use as apartments, dwellings, offices, and parking
20 areas any or all of the property acquired for parking or for future
21 building needs, (c) lease state property to the federal government or
22 political subdivisions of the state using the system of charges in
23 subsection (4) of this section, and (d) lease state property to a private
24 entity to provide services necessary for state operations or for the
25 convenience of state officers and employees when the space is not needed
26 for public use. All leases shall contain the provision that upon notice
27 that such property is needed for public use, the use or occupancy of the
28 property shall cease. All money received as rent from any property
29 acquired shall be remitted to the State Treasurer and credited to the
30 State Building Revolving Fund, except that receipts from parking charges
31 ~~for employee, public, and state vehicle parking~~ shall be credited to the

1 ~~Capitol Buildings~~ Parking Revolving Fund, which fund is hereby created,
2 for the purposes of providing and maintaining parking for state employees
3 and visitors.

4 (4) The system of charges for state buildings and facilities shall
5 include an amount sufficient to (a) accurately reflect operating costs,
6 including routine maintenance and repair costs, ~~and~~ (b) fund building
7 renewal projects under the Deferred Building Renewal Act and renovation,
8 remodeling, and repair projects beyond the scope of the act, and (c)
9 beginning July 1, 2028, fund adequate offstreet parking for all state
10 employees as required by subdivision (4)(d) of section 81-1108.15. The
11 proceeds received under subdivision (a) of this subsection shall be
12 remitted to the State Treasurer for credit to the State Building
13 Revolving Fund. The proceeds received under subdivision (b) of this
14 subsection shall be remitted to the State Treasurer for credit to the
15 State Building Renewal Assessment Fund. The administrator shall develop a
16 system of equitable billings and charges for parking facilities under his
17 or her control and used by visitors ~~state employees~~ and state vehicles.
18 The system of charges shall include an amount sufficient to cover the
19 construction, operating, maintenance, and repair costs associated with
20 the parking facilities. The administrator, under policies and procedures
21 established by the Director of Administrative Services, may expend funds
22 from time to time credited to the ~~Capitol Buildings~~ Parking Revolving
23 Fund for the purposes of constructing, obtaining, operating, and
24 maintaining parking facilities for state vehicles, state employees, and
25 visitors. All money derived from any source other than that to be
26 credited to the State Building Revolving Fund, the ~~Capitol Buildings~~
27 Parking Revolving Fund, the Department of Administrative Services Cash
28 Fund, the State Building Renewal Assessment Fund, or other appropriate
29 revolving fund shall be remitted to the State Treasurer and credited to
30 the General Fund.

31 (5) The administrator shall see that all parts and apartments of the

1 buildings leased are properly ventilated and kept clean and in order.

2 (6) The administrator shall at all times have charge of and
3 supervision over the police, janitors, and other employees in and about
4 the state laboratory and laboratory grounds, the Governor's Mansion and
5 grounds, and all other buildings and lands owned or leased by the State
6 of Nebraska except as exempted under subsections (5) and (6) of section
7 81-1108.15 or as provided in the Nebraska State Capitol Preservation and
8 Restoration Act. The administrator shall institute, in the name of the
9 state and with the advice of the Attorney General, civil and criminal
10 proceedings against any person for injury or threatened injury to any
11 public property in the state laboratory and laboratory grounds, the
12 Governor's Mansion and grounds, and all other buildings and lands owned
13 or leased by the State of Nebraska under his or her control, or for
14 committing or threatening to commit a nuisance in or on the buildings or
15 lands.

16 (7) The administrator shall keep in his or her office a complete
17 record containing all plans and surveys of the state laboratory and
18 grounds, the Governor's Mansion and grounds, and all other buildings and
19 lands owned or leased by the State of Nebraska and of underground
20 construction under such buildings and lands. This subsection shall not
21 apply to the State Capitol and capitol grounds.

22 **Sec. 3.** Original section 81-1108.17, Reissue Revised Statutes of
23 Nebraska, and section 81-1108.15, Revised Statutes Supplement, 2025, are
24 repealed.